

26STCP00790 26STCP00790

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-21

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Case Number: 26STCP00790 Hearing Date: July 21, 2026 Dept: 25

HEARING DATE: Tues., July 21, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Ho,
et al. v. J&Q Land Development Construction, Inc.

PET. FILED: 02-25-26

CASE NUMBER: 26STCP00790

NOTICE: OK

PROCEEDINGS: MOTION
FOR AWARD OF ATTORNEY FEES AND COSTS

MOVING PARTY: Petitioners
Jenny Sam Ho and Wai Leung Chan

RESP. PARTY: None

MOTION FOR ATTORNEY'S FEES AND COSTS

(Civ. Code § 8488)

TENTATIVE RULING:

The Court GRANTS Jenny Sam
Ho and Wai Leung Chan's motion for award of attorney fees and costs in the
reduced amount of \$5,416.06.

Ho

and Chan are to give notice.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X] 16/21 Court Days Lapsed

(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of July 16,

2026 ☐ [] Late ☒ [X] None

REPLY: None filed as

of July 16, 2026 ☐ []

Late ☒ [X] None

ANALYSIS:

Jenny

Sam Ho and Wai Leung Chan petitioned to expunge J&Q Land Development Construction, Inc.'s mechanics lien.

This Court granted the petition. Ho

and Chan now move for attorney fees and costs in the amount of \$5,741.06 pursuant to Civil Code section 8488.

Attorney

fees are allowable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)

Civil Code section 8488, subdivision (c) authorizes the prevailing party on a petition to release/expunge a mechanics lien to recover "reasonable attorney's fees." Given that Ho and

Chan's petition was granted, they are the prevailing party and thus are entitled to reasonable attorney fees.

(Civ. Code, § 8488, subd. (c).)

The Court's objective is to award those fees at the fair-market value for the attorneys' work. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) That can be done by multiplying the number of hours the attorneys reasonably expended by a reasonable hourly rate. (Id. at pp. 1132, 1134.) Ho and Chan seek attorney fees based on their counsel, Emil B. Rogstad's and David M. Ward's, hourly rate of \$325.00, and The Green Law Group's paralegal hourly rate of \$265.00. Rogstad provides a ledger for this matter, with itemized hours demonstrating the specific tasks completed and the fees thereby incurred. In total, the ledger from October 2025 to April 2026 reflects \$4,221.00 in fees, consisting of 13.8 hours of total work—9.4 hours of attorney work at \$325.00 per hour and 4.4 hours of paralegal work at \$265.00 per hour. The Court finds both the rates and number of hours expended to be reasonable.

Ho and Chan also request attorney fees for this motion. Rogstad attests that three hours of total work at the rate of \$325.00 per hour were expended or anticipated for this motion—0.5 hours drafting the motion, 0.5 hours in preparing an exhibit, one hour for reviewing an opposition and preparing a reply, and one hour for appearance at this hearing. Given the lack of opposition and need for reply, the Court awards attorney fees for this motion in the reduced amount of \$650.00, reflecting two hours of work at \$325.00 per hour.

Finally, Ho and Chan request \$545.06 in costs. This amount is supported by Rogstad's ledger.

Accordingly, the Court GRANTS Ho and Chan's motion for attorney fees and costs in the reduced amount of \$5,416.06.

Ho and Chan are to give notice.